

Conclusion. FCA's motion for judgment on the pleadings is granted with leave to amend with regard to Plaintiff's cause of action for fraudulent inducement. FCA's motion is otherwise denied.

JERMINA MARIE OAKES vs. JIN-VANI HOSPITALITY LLC
Case No. CU25-07060

Motion to Compel

TENTATIVE RULING

The Parties are to appear.

YKRK INVESTMENT GROUP LLC vs. THE GLENWOOD ESTATES
CONDOMINIUMS OWNERS ASSOCIATION, INC.; ET AL.
Case No. CU26-07365

Petition for Order Determining Redemption Price

TENTATIVE RULING

C.C.P. §729.070(d) requires the petition papers to dispute a redemption amount to be personally served on the purchaser at least 10 days before hearing.

The court has no record of any proof of service filed for the petition papers.

C.C.P. §729.040 requires the trustee who conducted the nonjudicial foreclosure sale to provide to the purchaser the certificate of sale, and also to record a copy with the county recorder.

While this statute does not expressly require a copy of the certificate of sale to be provided to the former owner, anyone should be able to review the recorded documents and obtain a copy from the county recorder's office.

The petition failed to identify the purchaser.

C.C.P. §729.070(a) requires that the petition be served on the "levying officer", and the undisputed amount deposited with them. ["At the time the petition is filed, the petitioner shall deposit the undisputed amount of the redemption price with the levying officer, if deposit has not previously been made, and give written notice to the levying officer or trustee of the filing of the petition"].

Nothing has been filed with the court to confirm compliance with this requirement.

Thus, while such petitions are to be given priority, the court cannot hear the petition at this time.

The Petition is denied without prejudice.

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